

		regard to the terms of the sale contract between the purchaser and the dealer are independent of the sale contract.” (<i>Ibid.</i>) Consequently, the Ochoa court found that plaintiff’s warranty claims were not “founded” in the sales contract. “Rather, plaintiffs’ claims are based on FMC’s statutory obligations to reimburse consumers or replace their vehicles when unable to repair in accordance with its warranty.” (<i>Id.</i> at 1335.) “Not one of the plaintiffs sued on any express contractual language in the sale contracts.” (<i>Ibid.</i>) “The sale contracts include no warranty, nor any assurance regarding the quality of the vehicle sold, nor any promise of repairs or other remedies in the event problems arise. To the contrary, the sale contracts disclaim any warranty on the part of the dealers, while acknowledging no effect on ‘any warranties covering the vehicle that the vehicle manufacturer may provide.’ In short, the substantive terms of the sale contracts relate to sale and financing and nothing more.” (<i>Ibid.</i>) Similar to the above, the agreement herein disclaims any affect on manufacturer warranties stating: “If you do not get a written warranty, and the Seller does not enter into a service contract within 90 days from the date of this contract, the Seller makes no warranties, express or implied, on the vehicle, and there will be no implied warranties of merchantability or of fitness for a particular purpose. [¶] This provision does not affect any warranties covering the vehicle that the vehicle manufacturer may provide. (RISC, p. 4, ¶ 4.) Additionally, similar to the circumstances in Ochoa, Plaintiffs herein are not asserting any claims against Mercedes-Benz, based on the terms of the RISC. The Court in Ochoa further explained: “‘California law does not treat manufacturer warranties imposed outside the four corners of a retail sale contract as part of the sale contract.’” (<i>Ochoa, supra</i>, (2023) 89 Cal.App.5th 1324, 1335.) “[O]ur Supreme Court [has] distinguished between, on the one hand, warranty obligations flowing from the seller to the buyer by contract, and, on the other hand, manufacturer warranties ‘that arise[] independently of a contract of sale between the parties.’” (<i>Id.</i> at 1336.) Ochoa held that “Plaintiff’s claims in no way rely on the sale contracts” and, consequently, “[e]quitable estoppel does not apply.” (<i>Ibid.</i>) Thus, plaintiffs’ claims arise independent of the RISC. Therefore, defendant cannot compel arbitration through equitable estoppel. 1) Defendant to give notice.
12	23-01356405 <i>Pacific Western Bank vs. Sanghavi</i>	1) Application for Right to Attach Order/Writ of Attachment 2) Application for Right to Attach Order/Writ of Attachment The Applications of Plaintiff Banc of California, formerly known as Pacific Western Bank, for right to attach orders and orders for issuance of a writ of attachment against Defendants Rathi Sanghavi and Virusan

Services Inc. dba Pacific Coast Cleaning in the amount of \$111,479.86 is GRANTED.

The Court grants Plaintiff's request for judicial notice.

"At the hearing, the court shall consider the showing made by the parties appearing and shall issue a right to attach order, which shall state the amount to be secured by the attachment determined by the court in accordance with Section 483.015 or 483.020, if it finds all of the following: [¶] (1) The claim upon which the attachment is based is one upon which an attachment may be issued. [¶] (2) The plaintiff has established the probable validity of the claim upon which the attachment is based. [¶] (3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based. [¶] (4) The amount to be secured by the attachment is greater than zero." (Code Civ. Proc. § 484.090(a).)

Plaintiff's Applications meet all four requirements of section 484.090, subdivision (a).

First, pursuant to Code of Civil Procedure section 483.010, subdivision (a) "an attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees." In addition, section 483.010, subdivision (b) provides, in relevant part: "[a]n attachment may not be issued on a claim which is secured by any interest in real property arising from agreement, statute, or other rule of law..."

Attachment may issue against an individual guarantor of business debts and obligations if the guaranty arose out of the conduct of a guarantor's business. (Code Civ. Proc., § 483.010, subd. (c).) Code of Civil Procedure section 483.010, subdivision (c) provides: "If the action is against a defendant who is a natural person, an attachment may be issued only on a claim which arises out of the conduct by the defendant of a trade, business, or profession. An attachment may not be issued on a claim against a defendant who is a natural person if the claim is based on the sale or lease of property, a license to use property, the furnishing of services, or the loan of money where the property sold or leased, or licensed for use, the services furnished, or the money loaned was used by the defendant primarily for personal, family, or household purposes."

Generally, a claim arises out of "conduct by the defendant of a trade, business, or profession" in circumstances where the "the guarantee of the primary obligor's debt sued upon is part and parcel of an activity which occupies the time, attention and effort of the guarantor for the purpose of livelihood or profit on a continuing basis." (Advance Transformer Co. v. Sup.Ct. (Shapiro) (1974) 44 Cal.App.3d 127, 139; Nakasone v. Randall (1982) 129 Cal.App.3d 757, 764 [holding real estate broker who sold for her own account real property she owned for over 30 years was not engaged in the trade, business or profession of

selling real estate]; Great American Ins. Co. v. National Health Services, Inc. (1976) 62 Cal.App.3d 785, 794-795 [holding individual guarantor of a corporate debt who was a shareholder, officer and member of the board of the defendant debtor corporation and a major shareholder in several related companies was engaged in a trade or business—that of a business investor—and therefore subject to attachment].)

The factors to be considered include whether: (1) the guarantor was actively involved with the debtor on a continuing basis (e.g., as an officer, director, partner, shareholder, etc.); (2) any fee or consideration was paid for the guaranty; (3) the defendant guarantor frequently provided guaranties; and (4) the plaintiff relied upon the defendant guarantor's continuing guaranty in extending credit to the principal debtor. (See Advance Transformer Co., supra, 44 Cal.App3d at p. 144.)

Here, Plaintiff's claims against Defendants are based upon Plaintiff's extension of two commercial lines of credit to Defendant Virusan under two Promissory Notes as subsequently amended, which were guaranteed by Defendant Sanghavi under two commercial guaranty agreement. (Declaration of Steen Weber (Weber Decl.), ¶¶ 14, 18-21, 26, 29-31; Exs. 1, 5-7, 10, 13-15.) The total amount of money due to Plaintiff is fixed or readily ascertainable based on the Promissory Notes and Guaranties, which is greater than \$500. Specifically, according to Plaintiff's records, the total amount of Plaintiff's claims against Defendants is \$75,168.29, exclusive of costs, interest, and attorney's fees. (Weber Decl., ¶ 36; Exs. 17, 18.) Additionally, the Promissory Notes were not secured by any interest in personal or real property. (Weber Decl., ¶¶ 14, 26; Exs. 1, 10.)

With respect to Defendant Sanghavi, the evidence establishes he was engaged in "trade, business, or profession" and the money loaned was not used for "personal, family, or household purposes." Specifically, Defendant Sanghavi was actively involved with Defendant Virusan as an officer on a continuing basis. He signed the Notes and additional loan documents as CEO, CFO and Secretary of Defendant Virsun. (Weber Decl., ¶¶ 14-17, 26-28; Exs. 1-4, 10-12.) Thereafter, Defendant

Sanghavi signed a series of agreements for each loan as CEO, CFO and Secretary of Defendant Virsun, which extended the loans' original maturity date. The agreements were successively dated June 4, 2019; June 24, 2020; August 4, 2021; and August 9, 2022. (Weber Decl., ¶¶ 14-17, 26-28; Exs. 1-4, 10-12.) Further, Defendant Sanghavi was the only person to sign the documents in connection with these loans. (Weber Decl., Exs. 1-15.) Defendant Sanghavi provided a guaranty for each loan. (Weber Decl., Exs. 5, 15.)

Plaintiff relied upon Defendant Sanghavi's continuing guaranty to extend the credit given that each guaranty contains a continuing guaranty provision that provides:

THIS IS A "CONTINUING GUARANTY" UNDER WHICH
GUARANTOR AGREES TO GUARANTEE THE FULL AND

PUNCTUAL PAYMENT, PERFORMANCE AND SATISFACTION OF THE INDEBTEDNESS OF BORROWER TO LENDER, NOW EXISTING OR HEREAFTER ARISING OR ACQUIRED, ON AN OPEN AND CONTINUING BASIS. ACCORDINGLY, ANY PAYMENTS MADE ON THE INDEBTEDNESS WILL NOT DISCHARGE OR DIMINISH GUARANTOR'S OBLIGATIONS AND LIABILITY UNDER THIS GUARANTY FOR ANY REMAINING AND SUCCEEDING INDEBTEDNESS EVEN WHEN ALL OR PART OF THE OUTSTANDING INDEBTEDNESS MAY BE A ZERO BALANCE FROM TIME TO TIME.

(Weber Decl., Exs. 5, 15, p. 1.)

While there is no evidence as to whether Defendant Sanghavi received any fee or consideration for the guaranties, the evidence supports a finding that Defendant Sanghavi was engaged in trade or business. Additionally, each loan was supported by a Disbursement Request and Authorization that confirmed the money would be used for business purposes. (Weber Decl., ¶¶ 17, 21, 28, 321; Ex. 4, 7, 12, 15.)

Therefore, an attachment is proper against both Defendants, and Plaintiff has satisfied the first requirement.

Second, Plaintiff has sufficiently demonstrated that its breach of contract and breach guaranty claims have probable validity. A claim has “probable validity” where “it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Proc., § 481.190.) Here, on 8/31/2018, Defendant Virusan executed two Promissory Notes and additional loan documents for two commercial lines of credit: one in the maximum amount of \$93,000.00 (Note No. 1) and the other in the maximum amount of \$10,000.00 (Note No. 2). (Weber Decl., ¶¶ 14-17, 26-28; Exs. 1-4, 10-12.) Defendant Sanghavi signed the Notes and additional loan documents as CEO, CFO and Secretary of Defendant Virsun. (Ibid.) Concurrently with executing the Notes, Defendant Sanghavi executed two Commercial Guaranties for each loan. (Guaranty No. 1 and Guaranty No. 2). (Weber Decl., ¶¶ 18, 29; Ex. 5, 13.) By a series of four written agreements for each loan, the parties extended the original maturity date for each loan from 8/31/2019 to 8/31/2023. (Weber Decl., ¶¶ 19-21, 30-31; Exs. 6,-7, 14-15.) Plaintiff fully funded each loan. (Weber Decl., ¶¶ 14-18, 26-28.)

Defendants failed to make the payments due under each Note. (Weber Decl., ¶¶ 23, 34.) On 4/25/23, Plaintiff sent a letter to Defendants advising them of the Note No. 1 default and provided until 5/9/2023, to pay the Note No. 1 loan in full. (Weber Decl., ¶ 24, Ex. 8.) Plaintiff sent another letter on 5/18/23, advising Defendants of the Note No. 2 default and provided until 6/1/2023, to pay Note No. 2 loan in full. (Weber Decl., ¶ 35, Ex. 16.) Despite these demands, no payments were made. (Weber, Decl., ¶ 34.) On 9/20/2023, Plaintiff sent a third letter demanding payment of both loans in full no later than 10/2/2023. No payments were made. (Declaration of Raffi Khatchadourian

(Khatchadourian Decl.), ¶ 6, Ex. 1.) Thus, cause Defendants failed to repay the Notes, Plaintiff is likely to prevail at trial.

Third, Plaintiff seeks these attachments solely for the purpose of recovering on its claims. (Weber Decl., ¶ 37.)

Fourth, the total amount to be secured by the attachment is \$111,479.86, which is greater than zero.

Based on the above evidence, Plaintiff's Applications meet the requirements under Code of Civil Procedure section 484.090.

Attorney Fees

Attorney fees and costs are coverable only where provided for in the contract or authorized by law. (Civ. Code, §§ 1717, 1717.5; Code Civ. Proc., §§ 1021 et seq., 1033.5, subds. (a)(10), (c)(5).) To obtain fees and costs, the Right to Attach application must contain an estimated amount for costs and allowable fees. (Code Civ. Proc., § 482.110.)

Here, both Notes (Weber Decl., Exs. 1, 10 at p. 2) and both Guaranties (Weber Decl., Exs. 5, 13 at p. 3) expressly provide for recovery of costs and attorney fees. Plaintiff's applications contain an estimated amount of attorney fees of \$22,500.00 and costs of \$2,575.00. (Weber Decl. at ¶ 36; Khatchadourian Decl., ¶¶ 3-5.) Accordingly, this additional sum of \$25,075.00 is properly included in the amounts to be attached.

Description of Property to be Attached

Where an attachment is sought against a corporation, partnership or other unincorporated association, the Right to Attach application need not identify the property to be attached provided item "9a" of the Judicial Council form application is checked. (Code Civ. Proc., § 484.020(e); Ahart, Enforcing Judgments and Debts (Rutter), ¶ 4:189.) Here, item "9a" of Plaintiff's application against Defendant Virsun is checked.

However, where an attachment is sought against a natural person, the particular types of property to be attached must be described in the Right to Attach application. (Code Civ. Proc., § 484.020(e).) The description must be "reasonably adequate to permit the defendant to identify the specific property sought to be attached." (Id.) An "all inclusive" application that includes broad categories of property sought to be attached is permissible. (See Bank of America v. Salinas Nissan, Inc. (1989) 201 Cal. App. 3d 260, 268 [approving of plaintiff's use of broad descriptive categories of property subject to attachment]; see also Code Civ. Proc., § 487.010, subd. (c) [categories of property belonging to a natural person subject to attachment]; Code Civ. Proc., § 488.300 et. seq. [methods of levy re attached property].) Here, Plaintiff's application against Defendant Sanghavi mirrors these permissible statutory

		categories, and further identifies specific assets to the extent known to Plaintiff, including real property owned by Defendant Sanghavi, which Plaintiff described using the property's legal description. (See RJN, Ex. 1.) Plaintiff is to post a statutory undertaking of \$10,000. (Code Civ. Proc. § 489.220(a).) Plaintiff to give notice.
21	22-01241813 <i>Shady Bird Lending, LLC vs. The Source At Beach, LLC</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Compel Answers to Special Interrogatories • OFF CALENDAR
22	23-01368247 <i>Gleason vs. Keystone Pacific Property Management LLC</i>	Motion for Writ of Mandate Petitioner Badri Gleason's unopposed Petition for a Writ of Mandate ordering respondent Keystone Pacific Property Management LLC to permit Petitioner's Director Inspection of the Monarch Point Homeowners' Association books and records is GRANTED. "Every director shall have the absolute right at any reasonable time to inspect and copy all books, records and documents of every kind and to inspect the physical properties of the corporation of which such person is a director and also of its subsidiary corporations, domestic or foreign. Such inspection by a director may be made in person or by agent or attorney and the right of inspection includes the right to copy and make extracts." (Cal. Corp. Code § 1602.) "Upon refusal of a lawful demand for inspection, the superior court of the proper county, may enforce the right of inspection with just and proper conditions or may, for good cause shown, appoint one or more competent inspectors or accountants to audit the books and records kept in this state and investigate the property, funds and affairs of any domestic corporation or any foreign corporation keeping records in this state and of any subsidiary corporation thereof, domestic or foreign, keeping records in this state and to report thereon in such manner as the court may direct." (Cal. Corp. Code § 1603(a).) "Unlike director inspection rights in other states, '[t]he California statutory scheme does not impose a "proper purpose" requirement' [Citations.] Thus, [petitioner] was not required in his moving papers to articulate a proper purpose for the inspection reasonably related to his interests as a director. He merely needed to show that he was a director and that he made a demand for inspection, which was refused. (§§ 1602, 1603.) [¶] When [petitioner] made that showing, the burden shifted to [respondent] to show why the inspection should be curtailed by 'just and proper conditions.' [Citations.]" (<i>Fowler v. Golden Pac. Bancorp, Inc.</i> (2022) 80 Cal.App.5th 205, 217.)